

CITY COUNCIL AGENDA ITEM COVER SHEET

DATE OF COUNCIL MEETING: May 23rd 2011

TYPE OF DOCUMENT: (☒ ORDINANCE) (☐ RESOLUTION) (☐ LEASE/CONTRACT)
(☐ CHANGE ORDER/CONTRACT MODIFICATION) (☐ CONSIDER BID)
(☐ APPLICATIONS/LICENSES/PERMITS) (☐ APPOINTMENTS)
(☐ ANNOUNCEMENTS/REPORTS/MOTIONS)

SPONSOR(S) : (ORDINANCES/RESOLUTIONS ONLY) _____ Councilman

EXACT WORDING OF ENTITLEMENT/ITEM: "AN ORDINANCE APPROVING AND ESTABLISHING
REVISED WATER RATES, SEWER RATES, TAP FEES, SYSTEM DEVELOPMENT FEES,
ADMINISTRATIVE FEES, SERVICE CHARGES AND PENALTIES AND SEPTIC AND
COMMERCIAL DUMP RATES, AS RECOMMENDED BY THE BOARD OF PUBLIC UTILITIES

(1% Sales Tax Funding/Years _____)
(Other Funding _____) (Grant _____)

CONTACT PERSON: Randy Hays-Administration Manager PHONE: 637-6460 DEPT. BOPU

OTHER CITY DEPTS AFFECTED:

OTHER GOV'T AGENCIES AFFECTED:

FINANCIAL IMPACT PROPOSED OR CONDITIONS WHICH AFFECT CITY: Revised rates for
Water, Sewer, Tap Fees, System Development Fees, Administrative Fees, Septic
Waste Dump Rates and Liquid Commercial Waste Rates

CONTRACT TERM: STARTING DATE: January 1, 2012

	YES	NO	N/A
Is funding budgeted?	()	()	()
Were Bids called for?	()	()	()
Affected parties notified of Council procedure & dates?	()	()	()
Has bond, insurance or other security been arranged?	()	()	()
Have legal descriptions been checked?	()	()	()

Agenda item reviewed and/or approved by:

Risk Mgr () City Attorney (x) Dept. Head ()

General Comments: The Board of Public Utilities has reviewed Water, Sewer, Tap Fees, System Development Fees, Administrative Fees, Septic Waste Dump Rates and Liquid Commercial Waste Rates and has prepared a new rate schedule for review and approval by the governing body

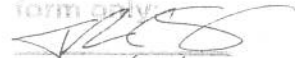
Submitted by: Randy Hays Title: Administration Manager - BOPU Date: May 06, 2011

UPON PASSAGE OF THIS AGENDA ITEM, COPIES SHOULD BE SENT TO:

Randy Hays - BOPU
Timothy E. Wilson - BOPU

ORDINANCE NO. _____

Approved as to
form only



Date: 4/27/2011

ENTITLED: "AN ORDINANCE APPROVING AND ESTABLISHING REVISED WATER RATES, SEWER RATES, TAP FEES, SYSTEM DEVELOPMENT FEES, ADMINISTRATIVE FEES, SERVICE CHARGES AND PENALTIES AND SEPTIC AND COMMERCIAL DUMP RATES, AS RECOMMENDED BY THE BOARD OF PUBLIC UTILITIES

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That, pursuant to WYO. STAT. §15-7-407 the Board of Public Utilities (BOARD) shall fix the rates for water and sanitary sewer services furnished to customers, and any revision thereof is subject to the governing body's review, modification and approval.

Section 2. That, pursuant to City Code Section 13.04.140, rates and charges for the consumption of city utility services, charges and fees for connection thereto, inspections, penalties, shutoff penalties and meter installations are established by the BOARD, approved by the Governing Body and filed with the City Clerk and business office of the Board.

Section 3. That pursuant to City Ordinances 3893, 3894, 3895 and 3896 adopted June 14, 2010, prior to the beginning of the fiscal year the BOARD will calculate new rates for water and sewer services based on based on the Bureau of Labor Statistics, Consumer Price Index, All Urban Consumers, Water and Sewer Maintenance and the Wyoming Cost Living Index – Southeast Region and prepare a new Water fee schedule and, whereas, the Bureau of Labor Statistics, Consumer Price Index, All Urban Consumers, Water and Sewer Maintenance for the calendar year 2010 was 6.75% and the Wyoming Cost Living Index – Southeast Region for the fourth quarter of 2010 was 3.2%;

Section 4. That the BOARD established by Resolution No. 2011-05, adopted May 4, 2011, revised water rates as shown and set forth on the resolution attached hereto as Exhibit A.

Section 5. That the BOARD established by Resolution No. 2011-06, adopted May 4, 2011 revised sewer rates as shown and set forth on the resolution attached hereto as Exhibit B.

Section 6. That the BOARD established by Resolution No. 2011-07, adopted May 4, 2011, revised tap fees, system development fees, pump station fees and other related fees as shown and set forth on the resolution attached hereto as Exhibit C.

Section 7. That the BOARD established by Resolution No. 2011-08, adopted May 4, 2011, revised Administrative fees, service charges and penalties as shown and set forth on the resolution attached hereto as Exhibit D..

Section 8. That the BOARD established by Resolution No. 2011-09, adopted May 4, 2011, revised Septic Waste Dump Rates and Commercial Waste Rates as shown and set forth on the resolution attached hereto as Exhibit E.

Section 9. That the Governing Body has reviewed the rates established by the BOARD for water and sewer services and hereby approves the rates as attached hereto.

Section 10. That prior to the beginning of each fiscal year, the BOARD will calculate new rates for Water and Sewer services based on the Bureau of Labor Statistics, Consumer Price Index, All Urban Consumers, Water and Sewer Maintenance and the Wyoming Cost Living Index – Southeast Region and prepare new rate schedules for Water and Sewer services that shall be presented, in the form of an ordinance, to the Governing Body.

Section 11. That this ordinance shall be in full force and effect upon its passage and publication.

FIRST READING: _____

SECOND READING: _____

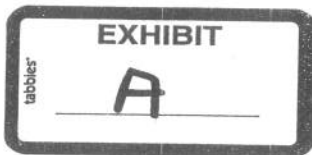
THIRD AND FINAL READING: _____

Richard L. Kaysen, Mayor

(SEAL)

ATTEST:

Carol A. Intlekofer, City Clerk



APPROVED
form only
[Signature]
Date: 5/22/2011

BOPU RESOLUTION NO. 2011- 05

ENTITLED: "A RESOLUTION ADOPTING REVISED WATER RATES TO BE CHARGED TO USERS OF THE CHEYENNE WATER SYSTEM."

WHEREAS, the Board of Public Utilities (Board) is authorized by State Statute and City Code to set rates, fees and penalties for water and sanitary sewer services furnished to customers; and

- (a) Pay for operation and maintenance of the water system, including salaries, wages and benefits, and the cost of all materials and supplies necessary for repairs, replacements and upgrades to the system; and
- (b) Pay interest charges and principal payments on all outstanding water loans and bonds as they are due; and
- (c) Cover all miscellaneous expenses; and
- (d) Cover all usual extensions and enlargements, together with a reasonable allowance for emergency and unforeseen expenses; and
- (e) Provide and maintain a depreciation fund for the water department; and

WHEREAS, the Board has determined that an increase in the water rates is necessary to ensure adequate revenue is generated in order to pay for costs associated with those services rendered; and

WHEREAS, the Governing Body of the City of Cheyenne, pursuant to Ordinance 3893, adopted June 14, 2010, requires that prior to the beginning of each fiscal year, the Board will calculate new Water rates, service charges, penalties and miscellaneous charges based on the Bureau of Labor Statistics, Consumer Price Index, All Urban Consumers, Water and Sewer Maintenance and the Wyoming Cost Living Index – Southeast Region and prepare a new Water fee schedule; and

WHEREAS, the Bureau of Labor Statistics, Consumer Price Index, All Urban Consumers, Water and Sewer Maintenance for the calendar year 2010 was 6.75% and the Wyoming Cost Living Index – Southeast Region for the fourth quarter of 2010 was 3.2%; and

NOW THEREFORE BE IT RESOLVED that the following Water Rate Schedule is adopted by the Board, and that it be presented in the form of an ordinance to the Governing Body of the City of Cheyenne for approval, to become effective on consumption and bills issued on or after the dates noted below on the water rate schedule:

WATER RATE SCHEDULE

Effective with metered consumption after November 01, 2011 on bills issued on or after the date indicated:

<u>Meter Size</u>	<u>January 1, 2012 Monthly Service Fee</u>	<u>January 1, 2011 Monthly Service Fee</u>
5/8 In. & 3/4 In.	\$ 4.95	\$ 4.80
1 In.	6.30	6.10
1 1/4 In. & 1 1/2 In.	10.00	9.71
2 In.	12.45	12.09
3 In.	48.45	47.04
4 In.	57.70	55.99
6 In.	75.00	72.79
8 In.	98.05	95.17
10 In.	126.90	123.14
12 In.	168.30	163.37

Service Fee: The monthly service fee is charged in addition to the charge per 1,000 gallons. This service fee is based upon the size of the water meter. The monthly service fee for outside city users will be 1.5 times the above rates.

	<u>January 1, 2012 Volume Rate Charge Per 1,000 Gallons</u>	<u>January 1, 2011 Volume Rate Charge Per 1,000 Gallons</u>
Residential Single Family Structure (in-city)		
First Block First 6,000	\$ 3.56	\$3.46
Second Block Next 18,000	4.42	4.29
Third Block Next 18,000	5.48	5.32
All Over 42,000	6.81	6.61
Residential Multifamily Structure (in-city)		
First Block First 3,000 per unit	\$3.56	\$3.46
Second Block Next 9,000 per unit	4.42	4.29
Third Block Next 9,000 per unit	5.48	5.32
All Over 21,000 per unit	6.81	6.61

Commercial / Industrial	\$4.10	\$3.98
South Cheyenne Water & Sewer District	4.10	3.98
F.E. WAFB	4.10	3.98
Large volume Industrial / Commercial	3.90	3.78
Irrigation - Treated Water	4.42	4.29
Irrigation - Raw Water including WAFB	2.31	2.24
Reclaimed Water	1.87	1.82
Recycled Water	3.34	3.24

* The volume rate charge for all outside city customers will be 1.5 times the above rates.

Multifamily residential unit: Defined as a residential building with two or more, separate and distinct, residences (for example duplex, triplex, four-plex, etc.) where water to the building is measured through a single meter.

Large Volume Industrial User: Defined as a user whose treated water demand is equal to or exceeds 1 million gallons a day (mgd) and whose demand upon the treated water system is constant on a day-to-day basis.

Raw water: Defined as surface water, which is not treated by the Board's water treatment plants.

Reclaimed water: Defined as water released from the Board's wastewater treatment plants or water released from the water treatment plant that is not recycled.

Recycled water: Defined as water released from the Board's water reclamation plant that has also received tertiary treatment.

BE IT FURTHER RESOLVED that the following rates be charged for the purpose of mineral exploration in Laramie County and other portions of Southeast Wyoming:

	January 1, 2012 Volume Rate Charge <u>Per 1,000 Gallons</u>	July 1, 2011 Volume Rate Charge <u>Per 1,000 Gallons</u>
Oil – Treated Water	\$10.22	\$9.92
Oil – Recycled Water	7.67	7.44
Oil – Raw Water	5.35	5.20
Oil – Reclaimed Water	5.35	5.20

BE IT FURTHER RESOLVED that the Board is authorized to negotiate contracts with water system users, based upon the above rates and any revision of the above rates shall be subject to Governing Body review, modification and approval.

BE IT FURTHER RESOLVED that the Board is authorized to negotiate contracts and rates with commercial and/or industrial users, whose demand exceeds 500,000 gallons per day for the sale of raw water and/or reclaimed water. Said contracts and rates shall be subject to Governing Body approval.

BE IT FURTHER RESOLVED that the fees established by the Board be submitted to the Governing Body of the City of Cheyenne for approval and filing as provided by the Code of the City of Cheyenne, Wyoming

ADOPTED this 4th day of May, 2011.

BOARD OF PUBLIC UTILITIES

BY:



Gary Carver, President

(SEAL)

ATTEST:



David Evans, Secretary

Commercial / Industrial	\$4.10	\$3.98
South Cheyenne Water & Sewer District	4.10	3.98
F.E. WAFB	4.10	3.98
Large volume Industrial / Commercial	3.90	3.78
Irrigation - Treated Water	4.42	4.29
Irrigation - Raw Water including WAFB	2.31	2.24
Reclaimed Water	1.87	1.82
Recycled Water	3.34	3.24

* The volume rate charge for all outside city customers will be 1.5 times the above rates.

Multifamily residential unit: Defined as a residential building with two or more, separate and distinct, residences (for example duplex, triplex, four-plex, etc.) where water to the building is measured through a single meter.

Large Volume Industrial User: Defined as a user whose treated water demand is equal to or exceeds 1 million gallons a day (mgd) and whose demand upon the treated water system is constant on a day-to-day basis.

Raw water: Defined as surface water, which is not treated by the Board's water treatment plants.

Reclaimed water: Defined as water released from the Board's wastewater treatment plants or water released from the water treatment plant that is not recycled.

Recycled water: Defined as water released from the Board's water reclamation plant that has also received tertiary treatment.

BE IT FURTHER RESOLVED that the following rates be charged for the purpose of mineral exploration in Laramie County and other portions of Southeast Wyoming:

	January 1, 2012 Volume Rate Charge Per 1,000 Gallons	January 1, 2011 Volume Rate Charge Per 1,000 Gallons
Oil - Treated Water	\$13.61	\$13.22
Oil - Recycled Water	9.57	9.30
Oil - Raw Water	7.46	7.25
Oil - Reclaimed Water	5.35	5.20

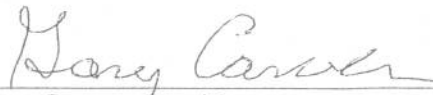
BE IT FURTHER RESOLVED that the Board is authorized to negotiate contracts with water system users, based upon the above rates and any revision of the above rates shall be subject to Governing Body review, modification and approval.

BE IT FURTHER RESOLVED that the Board is authorized to negotiate contracts and rates with commercial and/or industrial users, whose demand exceeds 500,000 gallons per day for the sale of raw water and/or reclaimed water. Said contracts and rates shall be subject to Governing Body approval.

BE IT FURTHER RESOLVED that the fees established by the Board be submitted to the Governing Body of the City of Cheyenne for approval and filing as provided by the Code of the City of Cheyenne, Wyoming

ADOPTED this 4th day of May, 2011.

BOARD OF PUBLIC UTILITIES
BY:



Gary Carver, President

(SEAL)

ATTEST:



David Evans, Secretary

ENTITLED: "A RESOLUTION ADOPTING REVISED SEWER RATES TO BE CHARGED TO USERS OF THE CHEYENNE SEWER SYSTEM."

WHEREAS, the Board of Public Utilities (Board) is authorized by State Statute and City Code to set rates, fees and penalties for water and sanitary sewer services furnished to customers; and

- (a) Pay for operation and maintenance of the sanitary sewer system, including salaries, wages and benefits, and the cost of all materials and supplies necessary for repairs, replacements and upgrades to the system; and
- (b) Pay interest charges and principal payments on all outstanding sewer loans and bonds as they are due; and
- (c) Cover all miscellaneous expenses; and
- (d) Cover all usual extensions and enlargements, together with a reasonable allowance for emergency and unforeseen expenses; and
- (e) Provide and maintain a depreciation fund for the sewer department; and

WHEREAS, the Board has determined that an increase in the sewer rates is necessary to ensure adequate revenue is generated in order to pay for costs associated with those services rendered; and

WHEREAS, the Governing Body of the City of Cheyenne, pursuant to Ordinance 3894, adopted June 14, 2010, requires that prior to the beginning of each fiscal year, the Board will calculate new Sewer rates, service charges, penalties and miscellaneous charges based on the Bureau of Labor Statistics, Consumer Price Index, All Urban Consumers, Water and Sewer Maintenance and the Wyoming Cost Living Index – Southeast Region and prepare a new Sewer fee schedule; and

WHEREAS, the Bureau of Labor Statistics, Consumer Price Index, All Urban Consumers, Water and Sewer Maintenance for the calendar year 2010 was 6.75% and the Wyoming Cost Living Index – Southeast Region for the fourth quarter of 2010 was 3.2%; and

NOW THEREFORE BE IT RESOLVED that the following Sewer Rate Schedule is adopted by the Board, and that it be presented in the form of an ordinance to the Governing Body of the City of Cheyenne for approval, to become effective on consumption and bills issued on or after the dates noted below on the Sewer rate schedule:

SEWER RATE SCHEDULE

Effective with metered consumption after November 01, 2011 on bills issued on or after the date indicated:

<u>Meter Size</u>	<u>January 1, 2012 Monthly Service Fee</u>	<u>January 1, 2011 Monthly Service Fee</u>
5/8 In. & 3/4 In.	\$ 4.05	\$ 3.93
1 In.	4.70	4.55
1 1/4 In. & 1 1/2 In.	5.75	5.58
2 In.	8.10	7.85
3 In.	11.55	11.21
4 In.	16.25	15.76
6 In.	27.75	26.88
8 In.	41.60	40.32
10 In.	55.45	53.76
12 In.	69.35	67.21

Service Fee: The monthly service fee is charged in addition to the charge per 1,000 gallons. This service fee is based upon the size of the Sewer meter. The monthly service fee for outside city users will be 1.5 times the above rates.

	<u>January 1, 2012 Volume Rate Charge Per 1,000 Gallons</u>	<u>January 1, 2011 Volume Rate Charge Per 1,000 Gallons</u>
Residential	\$3.57	\$3.46
Commercial / Industrial	3.57	3.46
South Cheyenne Sewer & Sewer District	3.57	3.46
F.E. WAFB	3.57	3.46
Large volume Industrial / Commercial	3.57	3.46

BE IT FURTHER RESOLVED that whenever the BOD concentration exceeds 350mg/l the sewage use rate shall be increased by \$.41 per pound of waste and whenever the TSS concentration exceeds 700mg/l the sewage rate shall be increased by \$.33 per pound of waste.

BE IT FURTHER RESOLVED that outside city customers, unless specifically identified above, will be charged 1.5 times the above rates.

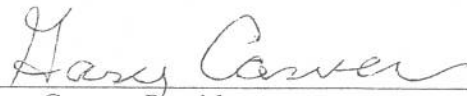
BE IT FURTHER RESOLVED that the Board is authorized to negotiate contracts with sewer system users, based upon the above rates and any revision of the above rates shall be subject to Governing Body review, modification and approval.

BE IT FURTHER RESOLVED that the fees established by the Board be submitted to the Governing Body of the City of Cheyenne for approval and filing as provided by the Code of the City of Cheyenne, Wyoming.

ADOPTED this 4th day of May, 2011.

BOARD OF PUBLIC UTILITIES

BY:



Gary Carver, President

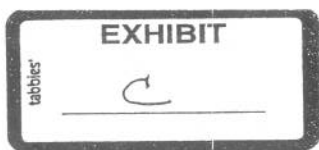
(SEAL)

ATTEST:



David Evans, Secretary

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Approved as to
form only
Date: 5/3/2011

ENTITLED: "A RESOLUTION APPROVING REVISED TAP FEES, WATER AND SEWER SYSTEM DEVELOPMENT FEES, PUMP STATION AND RELATED FEES SET BY THE BOARD OF PUBLIC UTILITIES."

WHEREAS, the Board of Public Utilities ("BOARD") has exclusive authority to manage, operate, maintain and control the Cheyenne Municipal Waterworks, Sanitary Sewage System and Sewage Disposal Plants of the City and to make all rules and regulations necessary for the safe, economical and efficient operation and maintenance of the above facilities; and

WHEREAS, the Board has determined that an increase in the fees is necessary to pay for costs associated with: the new connectors share of system; water and sewer development; water and sewer debt service; over-sizing certain water and sewer mains; and the expansion to the water and sewer systems; and

WHEREAS, the BOARD desires to set the above fees to secure an income sufficient to secure to:

- (a) Pay for costs associated with the tap installations;
- (b) Recover costs and to reduce debt associated with water and sewer development and expansion for new connectors to the City's water and sewer system;
- (c) Pay for costs associated with the water and sewer over-sizing and extensions; and

WHEREAS, the Governing Body of the City of Cheyenne, pursuant to Ordinance 3895, adopted June 14, 2010, requires that prior to the beginning of each fiscal year, the Board will calculate new tap fees, system development fees, pump station fees, and other related fees based on the Bureau of Labor Statistics, Consumer Price Index, All Urban Consumers, Water and Sewer Maintenance and the Wyoming Cost Living Index – Southeast Region and prepare a new tap fees, system development fees, pump station fees and other related fees schedule; and

WHEREAS, the Bureau of Labor Statistics, Consumer Price Index, All Urban Consumers, Water and Sewer Maintenance for the calendar year 2010 was 6.75% and the Wyoming Cost Living Index – Southeast Region for the fourth quarter of 2010 was 3.2%; and

THEREFORE BE IT RESOLVED that the following Schedule of Tap Fees, System Development Fees, Pump Station Development and Related Fees is adopted by the BOARD, and that it shall be presented in the form of an ordinance to the Governing Body of the City of Cheyenne for approval, and upon approval will become effective on the dates indicated below:

Water Tap Fee:

<u>Tap Size</u>	<u>January 1, 2012</u>	<u>January 1, 2011</u>
3/4"	\$ 244.00	\$ 237.00
1"	287.00	279.00
1 1/2"	638.00	620.00
2"	926.00	899.00
3"	2,651.00	2,574.00
4"	2,768.00	2,688.00
6"	3,227.00	3,133.00
8"	3,919.00	3,805.00
10"	5,186.00	5,035.00
12"	6,464.00	6,276.00

Water System Development Fee-Single Family Residential:

<u>Tap Size</u>	<u>January 1, 2012</u>	<u>January 1, 2011</u>
3/4"	\$ 5,655.00	\$ 5,490.00
1"	10,820.00	10,505.00
1 1/2"	21,085.00	20,473.00
2"	37,635.00	36,541.00

Water System Development Fee-Multi-Family or a Multi-Unit Complex:

# of Units	Fee per Unit January 1, 2012	January 1, 2011 (Current)
First 4	\$ 2,555.00	\$ 2,481.00
Next 8	1,704.00	1,654.00
Next 52	1,032.00	1,002.00
Over 64	521.00	506.00

Water System Development Fee-Commercial/Industrial User:

Tap Size	January 1, 2012	January 1, 2011 (Current)
3/4"	\$ 6,368.00	\$ 6,183.00
1"	15,665.00	15,210.00
1 1/2"	36,720.00	35,652.00
2"	56,295.00	54,657.00
3"	119,910.00	116,418.00
4"	297,330.00	288,672.00

Water System Development Fee – Large Commercial/Industrial User:

Factor	Amount GPD	January 1, 2012 Multiplier \$	January 1, 2011 (Current) Multiplier \$
Base Demand =		\$ 11.49*	\$11.16*
Maximum Day Demand =		\$ 4.52**	4.39**
Peak Hour Demand =		\$ 0.29***	.28**

*Per gallon per day average day demand

**Per gallon per day Maximum day demand

***Per gallon per day Maximum hour demand

Water Pump Station Fee:

Tap Size	January 1, 2012	January 1, 2011 (Current)
3/4"	\$ 1,385.00	\$ 1,344.00
1"	2,195.00	2,130.00
1 1/2"	4,230.00	4,104.00
2"	6,825.00	6,627.00
3"	15,515.00	15,065.00
4"	25,835.00	25,084.00
6"	61,240.00	59,455.00
8"	108,310.00	105,157.00
10"	171,805.00	166,804.00
12"	251,365.00	244,044.00

Sewer Tap Fee:

Water Tap Size	January 1, 2012	January 1, 2011 (Current)
All Sizes	\$ 101.00	\$ 98.00

3/4" to 12" The above fee is charged for each tap.

Sewer System Development Fee-Single Family Residential:

Water Tap Size	January 1, 2012	January 1, 2011 (Current)
3/4"	\$ 1,415.00	\$ 1,375.00
1"	2,490.00	2,419.00
1 1/2"	6,590.00	6,395.00
2"	10,590.00	10,277.00

Sewer System Development Fee-Multi-Family or a Multi-Unit Complex:

# of Units	Fee per Unit	
	January 1, 2012	January 1, 2011 (Current)
First 4	\$ 700.00	\$ 682.00
Next 8	510.00	496.00
Next 52	308.00	299.00
Over 64	160.00	155.00

Sewer System Development Fee-Commercial/Industrial User:Water

Tap Size	January 1, 2012	January 1, 2011 (Current)
3/4"	\$ 2,087.00	\$2,026.00
1"	4,900.00	4,756.00
1 1/2"	11,512.00	11,177.00
2"	18,360.00	17,826.00
3"	33,035.00	32,074.00
4"	64,870.00	62,980.00

Sewer System Development Fee-For Large Commercial/Industrial User:

Factor	Amount GPD or PPD	January 1, 2012 Multiplier \$	January 1, 2011 (Current) Multiplier \$
Wastewater Volume =		\$ 4.25*	\$ 4.13*
Biochemical Oxygen Demand =		\$ 872.40**	\$ 847.00**
Total Suspended Solids =		\$ 872.40**	\$ 847.00**

* Per gallon per day average day flow

** Per pounds per day average day demand

Schedule of Related Fees:(Current)

	January 1, 2012	January 1, 2011
Engineering/Tap Inspection Fee (per hour)	\$ 53.00	\$ 52.00
Eng. / Tap Inspection Overtime (per hour)	80.00	78.00
Construction Water	33.00	33.00
Meter Installation/Removal/Inspection Fee	48.00 / hr	47.00 / hr
Meter Installation/Removal/Insp Overtime Fee	75.00 / hr	73.00 / hr
Penalty for Taking Water Without Tap Permit	550.00	540.00
Penalty for Irrigating Without a Water Meter	550.00	540.00

BE IT FURTHER RESOLVED that:

1. The applicant/contractor/developer shall pay all fees due prior to the issuance of a tap permit except for system development fees which may be paid at either the time of issuance of a tap permit or prior to the issuance of a building permit. The fees due shall be the amount of the fee in effect at the time payment is received.
2. Under no circumstance will the City of Cheyenne be allowed to issue a building permit prior to the payment of all fees due the Board including system development fees. The applicant for a city building permit will be required to furnish proof to the City that all required fees have been paid to the BOARD including the system development fees.
3. The applicant for the tap permit shall remain liable to the BOARD for payment of all system development fees without regard to subsequent assumption of payment responsibility by another party.
4. In no event shall water service be provided to the property before all fees, including system development fees, are paid in full.
5. If no building permit is required, then the applicant/contractor/developer shall pay all fees, including system development fees before the issuance of a tap permit.

For All Taps:

The applicant/contractor/developer shall:

1. Submit a plumbing plan identifying service from the water main to the meter, prior to commencement of work. This plan will be submitted in duplicate for BOARD approval. The BOARD will retain one plan and one will be returned to the applicant.
2. Be responsible for proper street cuts, excavation, trench boxes, OSHA approved safety setups, backfill, base course, compaction plus asphalt and concrete replacement and other construction costs. (Note: BOARD employees will not access areas that do not fully comply with OSHA approved safety standards. If complications arise during the tapping process and BOARD personnel are required to assist or re-inspect, the applicant will be billed for the additional expenses incurred.)
3. Be responsible for installation of wiring for a remote readout meter.
4. Notify the BOARD prior to any lawn irrigation. (The water tap fee does not include water for irrigation of lawns.)
5. Be charged for irrigation water.
6. Pay a penalty as described in the Schedule of Related Fees for failure to comply with any of the requirements contained in this Resolution.

In Addition: For Water Taps ¾" and 1":

7. Be responsible for the corporation and insulator coupling. The water tap fee does not include the corporation or the insulator coupling.
8. Be responsible for the proper installation of the corporation and coupling and these items must be installed at the address and location and in the manner specified on the plan and permit. If the corporation and coupling are not properly installed or not in accordance with permit designation, then the applicant will be responsible for immediate removal and/or repair. (See Board of Public Utilities construction standards.)

In Addition: For Water Taps 2" and larger:

9. Be responsible for the installation of a 5' manhole meter pit, with ring and lid.

For Water Taps ¾" and 1":

The water tap fee includes administrative fees (inspection fee, account fee, construction water fee and cost of installing the ARB remote meter readout). The sewer fee includes the engineering fee for inspection and the sewer account fee.

For Water Taps 1 ½" and larger:

(Board will make all water line taps that are 1 ½" in diameter or greater. Applicant is responsible for all excavation and back filling)

Tap fee for 1 ½" and larger includes: cost of material (tapping sleeve, tapping saddle, tapping valve, corporation stop, insulator coupling, valve box, valve box extension, one cubic yard concrete thrust block), labor and equipment to install the material, and the administrative fees (inspection fee, account fee, construction water fee and cost of installing the ARB remote meter readout).

System Development Fees:

Taps for fire lines and main line extensions are exempt from system development fees.

Water Pump Station Development Fee:

For water taps issued within the designated Pump Station Water Service Area, the BOARD will collect the Water Pump Station Development Fee according to the fee schedule.

The applicant must pay the fee at the time the tap permit is issued. (See attached map for Northwest Cheyenne water service areas.) Funds collected will be used to construct or enlarge a pump station in the Northwest Cheyenne water service area.

The Pump Station Development Fee will also be paid for undeveloped lands and lots currently annexed to the City of Cheyenne that have a restriction by the BOARD that the water pump station capacity must be enlarged. The tap applicant, in lieu of having to enlarge the pump station capacity, will pay this fee.

The following lands and lots located inside the Pump Station Service Water Area are exempt from the pump station development fee:

1. Lands and lots already annexed to the City of Cheyenne with no pump station capacity enlargement restrictions by the BOARD.
2. Lands and lots currently annexed or not annexed to the City of Cheyenne with a restriction by the BOARD stating that the pump station capacity must be enlarged by the owner and the pump station capacity has been enlarged to the BOARD's satisfaction.

BE IT FURTHER RESOLVED that all taps and service connections within the boundaries of Warren Air Force Base will be charged the established in-city rates; and

BE IT FURTHER RESOLVED that all taps and service connections outside the City limits will be charged 1.5 times for all the above fees, charges and penalties; and

BE IT FURTHER RESOLVED that the Board is authorized to negotiate contracts with water and sewer system users, based upon the above rates for taps, system development fees, pump station fees and other related fees and that any revision of the above rates shall be subject to Governing Body review, modification and approval.

BE IT FURTHER RESOLVED that the foregoing fees, charges and penalties established by the BOARD be submitted to the City Council for approval and filing as provided by the Code of the City of Cheyenne.

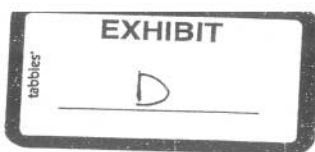
ADOPTED THIS 4th DAY OF May, 2011.


Gary Carver, President

(SEAL)

BY


David Evans, Secretary



Approved as to
form only
3/26/12
Date: 4/27/2012

BOPU RESOLUTION NO. 2011- 08

ENTITLED: "A RESOLUTION APPROVING REVISED ADMINISTRATIVE FEES, SERVICE CHARGES AND PENALTIES SET BY THE BOARD OF PUBLIC UTILITIES."

WHEREAS, the Board of Public Utilities (Board) is authorized by State Statute and City Code to set rates, fees and penalties for water and sanitary sewer services furnished to customers; and

WHEREAS, the Board has determined that an increase in the Administrative fees, service charges and penalties is necessary to ensure adequate revenue is generated in order to pay for costs associated with those water and sewer services rendered; and

WHEREAS, pursuant to City Code Section 13.04.140, rates and charges for the consumption of city utility services, charges and fees for connection thereto, inspections, penalties, shutoff penalties and meter installations are established by the Board, approved by the Governing Body and filed with the City Clerk and business office of the Board; and

WHEREAS, the Governing Body of the City of Cheyenne, pursuant to Ordinance 3852, adopted June 8, 2009, required that prior to the beginning of each fiscal year, the Board of Public Utilities will calculate new Administration fees, services charges and penalties based on the consumer price index and prepare a new fee schedule; and

WHEREAS, the Bureau of Labor Statistics, Consumer Price Index, All Urban Consumers, Water and Sewer Maintenance for the calendar year 2010 was 6.75% and the Wyoming Cost Living Index – Southeast Region for the fourth quarter of 2010 was 3.2%.

THEREFORE, BE IT RESOLVED that the following Administrative fees, service charges and penalties fee schedule are adopted by the Board and that they be submitted to the Governing Body of the City of Cheyenne for approval to become effective January 1, 2012.

	Administrative Fees, Service Charges and Penalties	
	Effective January 1, 2012	Effective January 1, 2010
Administration:		
Late Payment Penalty	\$2.85	\$2.85
(Charged accounts receiving a delinquency notice)		
Field Collection Charge/Trip Charge	\$13.50	\$13.50
Water Service Disconnect and/or Reconnect Fees:		
During Office Hours	\$27.00	\$27.00
After Office Hours	\$41.00	\$41.00
(Fee to reconnect water service after disconnection for non-payment or inability to obtain a meter reading)		
ISF Checks or Returned Checks	\$30.00	\$30.00
Violations of Wise Water Use Plan and/or Conservation Program		
1st Violation (Warning)	\$0	\$0
2nd Violation	\$100.00	\$410.00
3rd Violation	\$250.00	\$680.00
Subsequent Violations (each)	\$500.00	\$680.00
Penalty for violation of Unlawful Use Code (City code 13.04.110 Unlawful Use)	\$550.00	\$540.00
Photocopies (all)	\$.35	\$.30
Fax Transmissions		
Inbound	\$.75	\$.70
Outbound	\$1.25	\$1.20
Production and / or Duplication of Electronic Records or Recordings	\$10.80 per hour/minimum	\$10.50 per hour/Minimum
Special Project Research	\$16.45 per hour/minimum	\$16.00 per hour/minimum
Special Computer Runs/Listings	\$59.70	\$58.00

Engineering:

Inspection Fee (per hour)	\$53.00	\$52.00
Inspection Fee (per hour) - Overtime	\$80.00	\$78.00
Penalty for connection to System Without Permit	\$550.00	\$540.00
Penalty for Irrigating without a meter	\$550.00	\$540.00
Penalty for removing a meter w/o permission	\$550.00	\$540.00
Common User Service Application Fee	\$115.00	\$110.00
Outside User Agreement Application Fee	\$280.00	\$270.00
Utility Plan Review Fee (per plan & profile)	\$60.00	\$60.00
Paper Copy of Water and Sewer Maps	\$400.00	\$390.00
Paper Copy of Water Maps	\$236.00	\$230.00
Paper Copy of Sewer Maps	\$190.00	\$185.00
Electronic Copy of Water and Sewer Maps	\$180.00	\$175.00
Electronic Copy of Water Maps	\$123.00	\$120.00
Electronic Copy of Sewer Maps	\$103.00	\$100.00
Upgrade and Swap of Electronic Copy of Maps	\$27.00	\$26.00
Bid Documents/Specifications	\$35.00	
Bid-Plans/Drawings	\$35.00	
Oil Exploration Deposit	\$10,000.00	

Operation and Maintenance:

Meter Installation/Removal Fee	\$48.00	\$47.00
Meter Installation/Removal Fee - Overtime	\$75.00	\$73.00
Meter Inspection Testing Fee	\$28.00	\$27.00
Jet Truck Assistance to Contractors/Plumbers	\$224/hour	\$218/hour
Camera Van Assistance to Contractors/Plumbers	\$224/hour	\$218/hour
Sewer Blockage/Backup Fee	Actual Cost	
Water Distribution Damage Repair Fee	Actual Cost	
Damaged Meter - Frozen/Vandalized- 3/4"	Actual Cost	Actual Cost
Damaged Meter - Frozen/Vandalized- 1"	Actual Cost	Actual Cost
Construction Fire Hydrant Meter Deposit	\$1,670.00	\$1,625.00
(This is the sum of two following itemized deposits. Damage to a hydrant and/or failure to report water consumption could result in forfeiture of all or part of this deposit)		
Construction Meter Only Damage Deposit	\$1,010.00	\$940.00
Backflow Device and Equip Damage Deposit Only	\$660.00	\$645.00
Spanner Wrench	\$28.00	\$27.00
Fire Hose (2 1/2 X 6)	\$69.00	\$68.00
2" Auxiliary Valves & Adapters	\$113.00	\$110.00
2" Back Flow Device & Adapters	\$450.00	\$470.00
Construction Hydrant Meter Fees and Charges		
Permit and Handling Fee	\$34.00	\$33.00
Meter Rental Per Day	\$8.50	\$8.25
Water Consumption (per thousand gallons)	\$4.42	\$4.29
Penalty for taking water from Hydrant w/o Hydrant Meter/Backflow or proper Hydrant Permit	\$555.00	\$540.00
Water Turn on or Off Fee -(For other than Non-payment)	\$31.00	\$31.00
Water Turn on or Off Fee - Overtime (For other than non-payment)	\$62.00	\$62.00

Water Reclamation

Inspection Fee - Per Hour	\$53.00	\$52.00
Inspection Fee - Per Hour (Overtime)	\$80.00	\$78.00
Testing/Laboratory Fee	Actual Cost	Actual Cost
Industrial Pretreatment Program (IPP) Application	\$224.00	\$218.00
Industrial Pretreatment Program (IPP) Renewal Fee	\$86.00	\$84.00

BE IT FURTHER RESOLVED that the above Administrative fees, service charges and penalties fee schedules will be 1.5 times the above amounts for outside-City users.

BE IT FURTHER RESOLVED that the Board is authorized to negotiate contracts with water and sewer system users, based upon the above rates and any revision of the above rates shall be subject to Governing Body review, modification and approval.

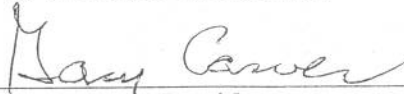
BE IT FURTHER RESOLVED that the foregoing Administrative fees, service charges and penalties fee schedules established by the Board of Public Utilities be submitted to the Governing Body for approval and filing as provided by Code of the City of Cheyenne.

ADOPTED this 4th day of May, 2011.

(SEAL)

BOARD OF PUBLIC UTILITIES

By:



Gary Carver, President

By:



David Evans, Secretary

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Approved as to
form only
[Signature]
Date: 4/28/2011

BOPU RESOLUTION NO. 2011- 09

ENTITLED: "A RESOLUTION ADOPTING REVISIONS TO THE SEPTIC WASTE DUMP AND COMMERCIAL WASTE RATES TO BE CHARGED TO USERS OF THE CHEYENNE WATER AND SEWER SYSTEM."

WHEREAS, the Board of Public Utilities (Board) is authorized by State Statute and City Code to set rates, fees and penalties for water and sanitary sewer services furnished to customers; and

- (a) Pay for operation and maintenance of the sanitary sewer system, including salaries, wages and benefits, and the cost of all materials and supplies necessary for repairs, replacements and upgrades to the system; and
- (b) Pay interest charges and principal payments on all outstanding sewer loans and bonds as they are due; and
- (c) Cover all miscellaneous expenses; and
- (d) Cover all usual extensions and enlargements, together with a reasonable allowance for emergency and unforeseen expenses; and
- (e) Provide and maintain a depreciation fund for the sewer department; and

WHEREAS, the Board has determined that an increase in the Septic Waste Dump and Commercial Waste rates are necessary to ensure adequate revenue is generated in order to pay for costs associated with those services rendered; and

WHEREAS, the Governing Body of the City of Cheyenne, pursuant to Ordinance 3896, adopted June 14, 2010, requires that prior to the beginning of each fiscal year, the Board will calculate new septic waste dump rates and commercial waste rates based on the Bureau of Labor Statistics, Consumer Price Index, All Urban Consumers, Water and Sewer Maintenance and the Wyoming Cost Living Index – Southeast Region and prepare a new septic waste dump rates and commercial waste rates schedule; and

WHEREAS, the Bureau of Labor Statistics, Consumer Price Index, All Urban Consumers, Water and Sewer Maintenance for the calendar year 2010 was 6.75% and the Wyoming Cost Living Index – Southeast Region for the fourth quarter of 2010 was 3.2%; and

NOW THEREFORE BE IT RESOLVED that the following Rate Schedule for septic waste dump and commercial waste is adopted by the Board, and that it be presented in the form of an ordinance to the Governing Body of the City of Cheyenne for approval, and will become effective on statements rendered, tickets purchased, and on septic and commercial waste delivered on or after January 1, 2012:

RATE SCHEDULES

Effective with all tickets purchased and all septic waste and commercial waste dumped on or after January 1, 2012:

Septic Waste Dump Rates:

For dumping Septic tanks, port a pots, holding tank wastes, and from domestic uses such as toilets, sinks, showers etc.

For the dumping of zero (0) to one hundred (100) gallons of septic tank waste.

Price Per		Price Per	
<u>Effective Date:</u>	<u>Ticket</u>	<u>Effective Date:</u>	<u>Ticket</u>
January 1, 2012	\$ 8.50	January 1, 2011	\$8.25

For the dumping of zero (0) to five hundred (500) gallons of septic tank waste.

Price Per		Price Per	
<u>Effective Date:</u>	<u>Ticket</u>	<u>Effective Date:</u>	<u>Ticket</u>
January 1, 2012	\$ 38.00	January 1, 2011	\$37.00

Septic Dump tickets are sold in books of ten, based upon the above rates and are non-refundable. Tickets are for dumping of 0 to 500 gallons or for 0 to 100 gallons of septic tank waste.

Grease Trap Waste:

Hauled waste from grease traps. Organic fats, oils and greases from food preparation activities

For the dumping of zero (0) to one hundred (100) gallons of grease trap waste.

<u>Effective Date:</u>		<u>Effective Date:</u>	
	Price Per <u>Ticket</u>		Price Per <u>Ticket</u>
January 1, 2012	\$ 10.30	January 1, 2011	\$10.00

For the dumping of zero (0) to five hundred (500) gallons of grease trap waste.

<u>Effective Date:</u>		<u>Effective Date:</u>	
	Price Per <u>Ticket</u>		Price Per <u>Ticket</u>
January 1, 2012	\$ 46.40	January 1, 2011	\$45.00

Grease Trap Waste tickets are sold in books of ten, based upon the above rates and are non-refundable. Tickets are for dumping of 0 to 500 gallons or for 0 to 100 gallons of Grease Trap Waste.

Hauled Non-hazardous Process Waste: Commercial process waste treated separately from other Board waste processes.

Rate per 0 to 500 Gallons:

<u>Effective Date:</u>		<u>Effective Date:</u>	
	Price Per <u>Ticket</u>		Price Per <u>Ticket</u>
January 1, 2012	\$ 54.00	January 1, 2011	\$ 45.00

Liquid Commercial Waste Tickets: Non hazardous commercial waste such as sand trap and oil water separator wastes.

For the dumping of 0 to 100 gallons of liquid commercial waste.

<u>Effective Date:</u>		<u>Effective Date:</u>	
	Price Per <u>Ticket</u>		Price Per <u>Ticket</u>
January 1, 2012	\$ 99.00	January 1, 2011	\$ 96.00

Liquid commercial waste tickets are sold individually based upon the above rates and are non-refundable. One ticket is for dumping of 0 to 100 gallons of liquid commercial waste.

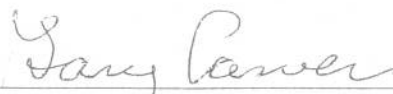
BE IT FURTHER RESOLVED that the Board is authorized to negotiate contracts with septic waste dump and commercial waste users, based upon the above rates and any revision of the above rates shall be subject to Governing Body review, modification and approval.

BE IT FURTHER RESOLVED that the rates for Septic Waste Dump Tickets and/or Commercial Waste Tickets for outside City users will be 1.5 times the above rates.

BE IT FURTHER RESOLVED that the Board has the option of either billing septic tank haulers or requiring them to purchase septic waste dump tickets.

BE IT FURTHER RESOLVED that the septic waste dump and commercial waste rates established by the Board be submitted to the Governing Body of the City of Cheyenne for approval and filing as provided by the Code of the City of Cheyenne, Wyoming.

ADOPTED this 4th day of May, 2011.



Gary Carver, President

(SEAL)

ATTEST:



David Evans, Secretary